

22STCV05110 22STCV05110

County: los-angeles

Division: Civil Law and Motion

Department: 413

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Case Number: 22STCV05110 Hearing Date: July 29, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/29/2026

CASE NUMBER: MORRY WAKSBERG vs CANTERS

FAIRFAX

CASE NAME: 22STCV05110

MOVING PARTY: Defendant Canters Fairfax

OPPOSING PARTY: Plaintiff Morry Waksberg

PROCEEDING: Motion to dismiss

RULING SUMMARY: Defendant Canters Fairfax's Motion to

Dismiss is granted, and the case is ordered dismissed. .

Background

On

February 9, 2022, Morry Waksberg ("Plaintiff") filed a complaint against Canter's Fairfax ("Defendant"), alleging one cause of action for Premises Liability. On filing, the Court assigned a trial date of August 9, 2023.

On

April 11, 2022, Defendant filed its Answer.

On

March 6, 2023, the Court, on the stipulation of the parties, continued the trial date to March 8, 2024. On November 22, 2023, the Court, on the unopposed ex parte application of Plaintiff, continued the trial date to May 16, 2024.

On

February 5, 2024, Plaintiff substituted in as his own attorney.

On May

1, 2024, the Court, on the opposed ex parte application of Plaintiff, continued the trial date to November 15, 2024. On November 12, 2024, the Court, on the oral request of Plaintiff, continued the trial to February 20, 2025. On February 6, 2025, the Court, on the oral request of Plaintiff (through John Levine ("Levine") in limited scope), continued the trial to May 19, 2025. On May 15, 2025, the Court, on the oral request of Plaintiff (again through Levine, representing him on limited scope), continued the trial to August 20, 2025.

On June

11, 2025, Defendant filed a Motion to Dismiss, which was denied.

On August

05, 2026, Plaintiff filed an Ex Parte Application to continue trial date and extend discovery cut-off, continued the trial to October 22, 2025.

On

August 06, 2025, Plaintiff substituted Levine as his legal representative.

On

October 10, 2025, the parties signed a stipulation to continue trial. The Court continued the trial to February 04, 2026. On February 04, 2026, the Court, on its own motion, continued the trial to February 11, 2026. On February 11, 2026, the Court, on its own motion, continued the trial to March 10, 2026.

On

February 23, 2026, the Court held the Final Status Conference ("FSC"). There was no appearance by Plaintiff. Defendant's counsel represented to the Court that he has had no communication with Plaintiff for the past six months. The FSC was

places off calendar and the trial vacated. The Court set an Order to Show Cause ("OSC") Re: Dismissal for April 16, 2026.

On

March 03, 2026, Defendant filed this Motion to Dismiss. On April 14, 2026, Plaintiff filed an Ex Parte Application to continue the Motion to Dismiss to permit Plaintiff time to file an Opposition. The Ex Parte Application was brought by Plaintiff himself stating that there was lack of communication with Levine and Plaintiff intended to find replacement counsel. The Ex Parte Application was granted and the OSC RE: Dismissal was continued to July 29, 2026.

No Opposition to the Motion has been filed.

LEGAL STANDARD

Code of
Civil Procedure section 583.410 provides:

(a) The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.

(b) Dismissal shall be pursuant to the procedure and in accordance with the criteria prescribed by rules adopted by the Judicial Council.

Code of
Civil Procedure section 583.420 provides, in part:

(a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred . . .

(2) The action is not brought to trial within the following times:

(A) Three years after

the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B).

(B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice.

California

Rules of Court, Rule 3.1340(a) provides that the court may dismiss an action “for delay in prosecution if the action has not been brought to trial or conditionally settled within two years after the action was commenced against the defendant.”

In addition, in ruling on a motion to dismiss under section 583.410, the court “must consider all matters relevant to a proper determination of the motion,” including:

(1)

The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;

(2)

The diligence in seeking to effect service of process;

(3) The extent to which the parties engaged in any settlement negotiations or discussions;

(4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;

(5) The nature and complexity of the case;

(6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;

(7) The nature of any extensions of time or other delay attributable to either party;

(8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;

(9) Whether the interests of justice are best served by dismissal or trial of the case; and

(10) Any other fact or circumstance relevant to a fair determination of the issue.

The court must be guided by the policies set forth in Code of Civil Procedure section 583.130.

(Cal. Rules of Court, Rule ("CRC") 3.1342(e).)

Code of Civil Procedure section 583.130 states:

It is the policy of the state that a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. Except as otherwise provided by statute or by rule of court adopted pursuant to statute, the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter.

DISCUSSION

Defendant asks the Court to dismiss the complaint on the ground that Plaintiff has failed to prosecute the action diligently.

Defendant

states that it attempted to depose Plaintiff on October 25, 2022, February 28, 2023, May 31, 2023, April 8, 2024, October 17, 2024; and November 12, 2025, and that , each time, Plaintiff did not appear, contending he had health limitations. (Decl. of Roger L. Popeney ("Popeney Decl.") ¶ 3.) Defendant further maintains that it has noticed Plaintiff's independent medical examination for September 30, 2024 and October 29, 2024, and Plaintiff refused to confirm his attendance, resulting in Defendant having to cancel the appointments to avoid cancellation fees. (Id. ¶ 4.) Defendant contends that (1) it has attempted to contact Levine on at least seven to eight times with no response (id. ¶ 5), and (2) Plaintiff failed to appear for the last four Final Status Conferences on January 11, 2026, February 4, 2026, February 11, 2026, and February 23, 2026 (id. ¶ 6.)

The

Court's file in this case shows the following:

Trial has been continued approximately eleven times, including when the OSC RE: Dismissal was scheduled, with six times being related to Plaintiff. There were four unexcused non-appearances by Plaintiff. Plaintiff has made no showing of diligence in prosecuting this case through discovery or other pretrial proceedings. The case involves claims of injury resulting from an alleged slip and fall on stairs on Defendant's property; these claims appear to be straightforward and not complex. The legal principles applicable to the claims also appear not to be complex. Although the Court's calendar is busy, it could have tried this case, which has been pending for almost four-and-a-half years, by now. In light of Defendant's effort to move the case to be trial ready, by trying to take Plaintiff's deposition and schedule an independent medical examination of Plaintiff, Plaintiff's non-cooperation in those efforts, and the lack of a showing by Plaintiff to prosecute the matter, and in consideration of the factors under CRC 3.1342(e) noted above, the Court concludes that the interests of justice are served by dismissing the case.

Conclusion

Defendant

Canter's Fairfax's Motion to Dismiss is granted, and the case is ordered dismissed.

Date: 07/29/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court